

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
KATRINA MARSHALLECK,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER DAISY  
MARTINEZ, LIEUTENANT JOHN ROJECKI and JOHN  
DOES-Police Officers as yet unidentified,

Defendants.  
-----X

Index #  
Date of filing:

Plaintiff designates Kings  
County as the place of trial

Basis of the venue is the Locus  
of Occurrence

### **SUMMONS**

Plaintiff resides at  
419 Hancock Street Apt 1  
Brooklyn, New York 11216

County of Kings

### **TO THE ABOVE NAMED DEFENDANT:**

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

#### **Defendant's address:**

THE CITY OF NEW YORK  
100 Church Street  
New York, New York 10007

POLICE OFFICER DAISY MARTINEZ-Tax ID  
# 936077

c/o New York City Police Department- 81<sup>st</sup>  
Precinct  
30 Ralph Avenue  
Brooklyn, New York 11221

LIEUTENANT JOHN ROJECKI

# 933286  
c/o New York City Police Department- 81<sup>st</sup>  
Precinct  
30 Ralph Avenue  
Brooklyn, New York 11221

#### **Plaintiff's attorneys:**

RUBENSTEIN & RYNECKI, ESQS.  
16 Court Street, Suite 1717  
Brooklyn, New York 11241  
(718)522-1020

Dated: Brooklyn, New York  
March 22, 2017

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
KATRINA MARSHALLECK,

Index No.:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER DAISY  
MARTINEZ, LIEUTENANT JOHN ROJECKI and JOHN  
DOES-Police Officers as yet unidentified,Defendants.  
-----X

Plaintiff, by her attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the defendants herein, upon information and belief, respectfully shows to this Court, and alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR  
FALSE ARREST ON BEHALF OF KATRINA MARSHALLECK**

1. That at all times hereinafter mentioned, plaintiff was and still is a resident of the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on August 9, 2016, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That on November 7, 2016, pursuant to the General Municipal Law, a Statutory 50-H hearing of plaintiff was held.

6. That on June 4, 2016, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER DAISY MARTINEZ and JOHN DOES-Police Officers as yet unidentified, as agents, servants and/or employees.

7. That on June 4, 2016, and at all times hereinafter mentioned and upon information and belief, the plaintiff, KATRINA MARSHALLECK, was lawfully present at or about the premises known as 257 Reid Avenue, Apt. # 1, County of Kings, City and State of New York.

8. That on June 4, 2016, and at all times hereinafter mentioned and upon information and belief, the plaintiff, KATRINA MARSHALLECK, was falsely arrested by defendants, POLICE OFFICER DAISY MARTINEZ, LIEUTENANT JOHN ROJECKI and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid premises.

9. That on June 4, 2016, and at all times hereinafter mentioned and upon information and belief, the aforementioned false arrest was performed knowingly, intentionally and willfully.

10. That on June 4, 2016, and at all times hereinafter mentioned and upon information and belief the defendants, POLICE OFFICER DAISY MARTINEZ, LIEUTENANT JOHN ROJECKI and JOHN DOES-Police Officers as yet unidentified, who falsely arrested the plaintiff, KATRINA MARSHALLECK, were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK.

11. That on June 4, 2016, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

12. That as a result of the aforesaid false arrest and confinement, plaintiff, KATRINA MARSHALLECK, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and

injuries.

13. By the reason of the foregoing, the plaintiff, MARSHALLECK, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT  
HIRING AND RETENTION ON BEHALF OF KATRINA MARSHALLECK**

14. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "13" inclusive with the same force and effect as if more fully set forth at length herein.

15. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER DAISY MARTINEZ, LIEUTENANT JOHN ROJECKI and JOHN DOES-Police Officers as yet unidentified, who violated the civil rights of the plaintiff, KATRINA MARSHALLECK.

16. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER DAISY MARTINEZ, LIEUTENANT JOHN ROJECKI and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

17. By the reason of the foregoing, the plaintiff, KATRINA MARSHALLECK, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE  
IMPRISONMENT ON BEHALF OF KATRINA MARSHALLECK**

18. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "17" inclusive with the same force and effect as if more fully set forth at length herein.

19. That on June 4, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER DAISY MARTINEZ, LIEUTENANT JOHN ROJECKI and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

20. That the defendants, POLICE OFFICER DAISY MARTINEZ, LIEUTENANT JOHN ROJECKI and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against her will and said confinement was not privileged.

21. By the reason of the foregoing, the plaintiff, KATRINA MARSHALLECK, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR INTENTIONAL  
AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS  
ON BEHALF OF KATRINA MARSHALLECK**

22. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "21" inclusive with the same force and effect as if more fully set forth at length herein.

23. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER DAISY MARTINEZ, LIEUTENANT JOHN ROJECKI and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

24. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, KATRINA MARSHALLECK.

25. That as a result of said intentional and negligent acts, the plaintiff, KATRINA MARSHALLECK, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of her person and suffered great physical pain, distress, mental shock,

mental anguish and psychological trauma and was otherwise injured.

26. By reason of the foregoing, the plaintiff, KATRINA MARSHALLECK, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR CIVIL  
RIGHTS VIOLATION ON BEHALF OF KATRINA MARSHALLECK**

27. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "26" inclusive with the same force and effect as if more fully set forth at length herein.

28. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER DAISY MARTINEZ, LIEUTENANT JOHN ROJECKI and JOHN DOES- Police Officers as yet unidentified, were acting under the color of law and within the scope of their authority, falsely arrested and falsely imprisoned the plaintiff, KATRINA MARSHALLECK, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

29. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER DAISY MARTINEZ, LIEUTENANT JOHN ROJECKI and JOHN DOES- Police Officers as yet unidentified, acting under color of law and within the scope of their authority, deprived the plaintiff, KATRINA MARSHALLECK, of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

30. The defendants had deprived the plaintiff by their actions of her civil rights as guaranteed by statute.

31. That the false arrest and false imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

32. That the deprivation by the defendants of plaintiff's civil rights was a result of the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER DAISY

MARTINEZ, LIEUTENANT JOHN ROJECKI and JOHN DOES-Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of the defendant, THE CITY OF NEW YORK.

33. That the defendants' actions were not privileged or immune.

34. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER DAISY MARTINEZ, LIEUTENANT JOHN ROJECKI and JOHN DOES-Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of her civil rights.

35. By the reason of the foregoing, the plaintiff, KATRINA MARSHALLECK, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**WHEREFORE**, plaintiff, KATRINA MARSHALLECK, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, KATRINA MARSHALLECK, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, KATRINA MARSHALLECK, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, KATRINA MARSHALLECK, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, KATRINA MARSHALLECK, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York  
March 22, 2017

Yours, etc.,

  
SCOTT E. RYNECKI, ESQ.  
RUBENSTEIN & RYNECKI, ESQS.  
Attorneys for Plaintiff  
KATRINA MARSHALLECK  
16 Court Street Suite 1717  
Brooklyn, New York 11241  
(718) 522-1020  
File No.: 16KM06-04

INDIVIDUAL VERIFICATION

STATE OF NEW YORK )

) SS:

COUNTY OF KINGS )

KATRINA MARSHALLECK, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.

  
KATRINA MARSHALLECK

Sworn to before me this 22nd  
day of March 2017

  
NOTARY PUBLIC

**MAGDA MARIN-COLON**  
Notary Public, State of New York  
No. 01MA6158891  
Qualified in Richmond County  
Commission Expires 1-16-20 **19**